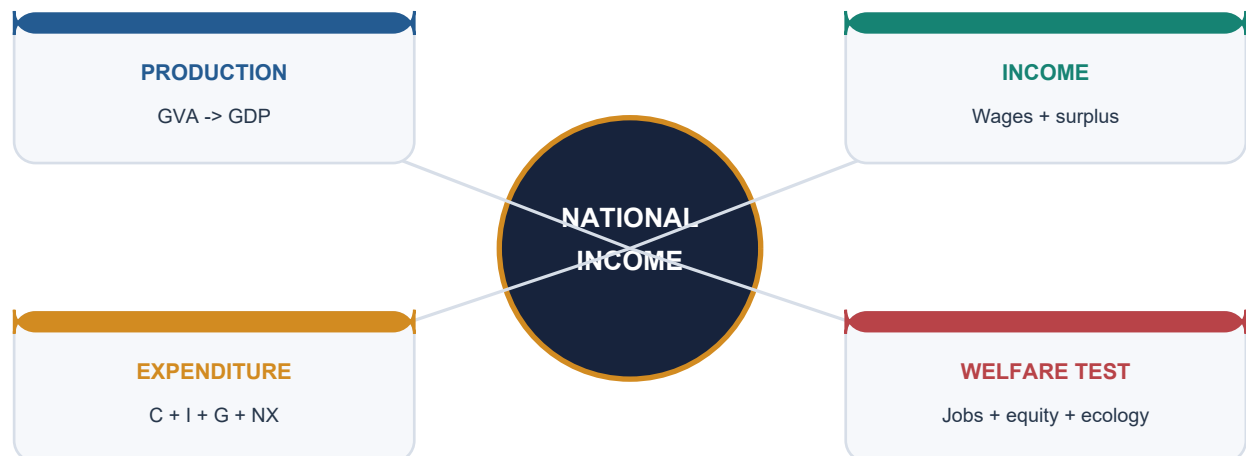


COMPLETE LEARNING SESSION

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 21 - High Court and Subordinate Courts - Complete Topic Package

Subject: Indian Polity | **Topic:** 21 | **GS-II + Prelims** | **Export date:** 2026-08-18 **Approval:** false - awaiting explicit user approval. **Evidence key:** [FACT] constitutional, judicial or officially verified proposition; [ANALYSIS] reasoned exam synthesis; [CURRENT] dated legal/current control; [LIMIT] qualification preventing overstatement.

Package method, source priority and current control

- Source order followed: basic/High-Court.md -> advanced/21_High-Court-and-Subordinate-Courts.md -> basic/Lok-Adalats-and-Other-Courts.md -> Polity 18 Supreme Court cross-link -> official Department of Justice/eCourts material and current appointment control. Qdrant was not used.
- [FACT] The Core owner supersedes stale or less-qualified Advanced statements.
- [CURRENT] Legal and institutional status is controlled to **18 August 2026, Asia/Kolkata**.
- [CURRENT] India has **25 High Courts**; some exercise jurisdiction over more than one State or Union Territory.
- [CURRENT] High Court and subordinate-court vacancy and pendency figures are dynamic. This package does not freeze them as durable facts; use the dated Department of Justice dashboard before quoting numbers.
- [CURRENT] The collegium system remains operative. The NJAC is not in force after the Supreme Court's 2015 decision.
- [CURRENT] An All India Judicial Service has **not** been created. Article 312 permits one only after the prescribed Rajya Sabha resolution and parliamentary law, and Article 312(3) excludes posts below district judge.
- [CURRENT] eCourts Phase III, approved for 2023-2027 with an official outlay of Rs 7,210 crore, is under implementation for digitisation, e-filing, e-payments, paperless courts, data-based case management and e-Sewa Kendras.
- [LIMIT] Technology improves access and administration but cannot substitute for judges, court staff, legal aid, reasoned adjudication or procedural fairness.
- Official current sources: Department of Justice eCourts division and vacancy dashboard; Supreme Court collegium resolutions; eCourts portal.
- Package target: independently answer-complete Foundation/Core, Optional Advanced refinements, more than 35 text-native visuals, two solved cross-owned Mains PYQ routes, two routed Prelims demands, 36 original MCQs, 12 remedial MCQs and eight original solved Mains questions.

Roadmap

Stage	Coverage	Exam outcome
Integrated judiciary	Articles 214-237	Locates High Courts and district judiciary
High Court organisation	composition, common HCs, seats and benches	Solves institutional traps
Judges	appointment, qualification, tenure, transfer and removal	Handles independence questions
Jurisdiction	original, appellate, writ, review and contempt	Builds complete answers
Writs	Articles 32 and 226 comparison	Solves high-frequency Prelims/Mains
Superintendence	Articles 227-228	Distinguishes appeal from supervision
Subordinate courts	Articles 233-237 and hierarchy	Explains district judicial independence
Access to justice	Article 39A, legal aid, Lok Adalats and Gram Nyayalayas	Connects institutions to citizens
Reform	vacancies, pendency, AIJS, eCourts and case management	Adds current analytical depth
Workbook	PYQs, MCQs, remedials and Mains models	Converts coverage into marks

Scope ownership and cross-links

- **Polity 18 - Supreme Court:** full collegium evolution, NJAC, Article 32, SLP, judicial accountability and constitutional review.
- **Polity 34 - Attorney General and Advocate General:** State law officer under Article 165.
- **Polity 46 - Administrative Tribunals:** tribunal design and *L. Chandra Kumar* review.
- **Lok Adalats and Other Courts:** detailed statutory comparison of Lok Adalats, Permanent Lok Adalats, Family Courts and Gram Nyayalayas.
- [LIMIT] This package owns State-level constitutional courts and the district judiciary. Cross-links prevent duplication while the Foundation/Core remains independently answer-complete.

PART I - Complete Foundation and Core learning session

01. One integrated judiciary

Visual 1 - Judicial hierarchy



Caption: India has an integrated hierarchy rather than separate federal and State court systems.

- [FACT] Articles 214-231 govern High Courts; Articles 233-237 govern subordinate courts.
- [FACT] A High Court is the highest constitutional court within its territorial jurisdiction, subject to Supreme Court appellate and constitutional authority.
- [FACT] The High Court is not merely an appellate court; it is a writ court, court of record, supervisory authority and administrative controller of the subordinate judiciary.
- [ANALYSIS] Integration promotes legal unity while decentralising everyday constitutional remedies.

Visual 2 - Functional chain

Citizen grievance
|
ordinary trial / statutory forum
|
appeal or revision
|
High Court
+-- rights protection
+-- legality review
+-- supervision
+-- district-judiciary control
|
Supreme Court where constitutionally available

02. Historical and constitutional location

- [FACT] The first chartered High Courts were established at Calcutta, Bombay and Madras in 1862; Allahabad followed in 1866.
- [FACT] Article 214 states that there shall be a High Court for each State.
- [FACT] Article 231 permits a common High Court for two or more States or for States and Union Territories.
- [FACT] The common-High-Court provision reflects the Seventh Amendment reorganisation framework.
- [CURRENT] There are 25 High Courts, not one for every State.

Visual 3 - One-per-State rule and common-HC exception

Constitutional idea	Position
Default	High Court for each State
Permitted arrangement	Common High Court for multiple States/UTs
Total current High Courts	25
Consequence	Court count is lower than State/UT count

UPSC trap: Article 214's language must be read with Article 231.

03. Composition and sanctioned strength

Visual 4 - Article 216

High Court
+-- Chief Justice
+-- other judges as President considers necessary

- [FACT] The Constitution does not fix a uniform number of judges for each High Court.
- [FACT] Sanctioned strength varies according to institutional decisions and workload assessment.
- [CURRENT] Working strength and vacancy figures change frequently; quote only a dated official source.
- [ANALYSIS] A constitutionally broad jurisdiction can be weakened in practice when sanctioned posts are vacant or infrastructure is inadequate.

04. Appointment of High Court judges

Visual 5 - Constitutional text and collegium practice

Originating High Court process
HC Chief Justice + consultation with two senior colleagues
|
State inputs / Governor channel
|
Supreme Court collegium
CJI + two senior-most SC judges for HC appointments
|
Union processing

President appoints under Article 217

- [FACT] Article 217 provides appointment by the President after consultation with the Chief Justice of India, the Governor and, for a puisne judge, the Chief Justice of the High Court.
- [FACT] Current collegium practice is judicially developed rather than written in Article 217.
- [FACT] The initiating High Court Chief Justice consults the two senior-most colleagues.
- [FACT] At the Supreme Court stage, High Court appointments are considered by the CJI and two senior-most Supreme Court judges.
- [LIMIT] Executive inputs and processing remain part of the appointment pipeline; "judicial primacy" does not mean the executive has no role.

Visual 6 - Text versus doctrine

Layer	Source	Content
Constitutional text	Article 217	President and specified consultations
Judicial doctrine	Judges Cases	collegium and judicial primacy
Administrative practice	Memorandum of Procedure	processing, intelligence and timelines
Current status	2026	collegium operative; NJAC not in force

05. Qualifications

Visual 7 - Article 217 eligibility

Requirement	Route 1	Route 2
Citizenship	Indian citizen	Indian citizen
Experience	at least 10 years in judicial office	at least 10 years as advocate of one or more High Courts

- [FACT] No minimum age is specified.
- [FACT] "Distinguished jurist" is not a High Court eligibility route.
- [FACT] Questions about experience computation are governed by constitutional and statutory detail.

Mnemonic: High Court = citizen + 10 judicial years OR 10 advocacy years; no jurist route.

06. Oath, tenure and retirement

Visual 8 - Office cycle

President appoints
 |
 Governor (or authorised person) administers oath: Article 219
 |
 holds office until age 62
 |
 resignation / removal / SC elevation / transfer

- [FACT] A High Court judge retires at 62; a Supreme Court judge retires at 65.
- [FACT] Resignation is addressed to the President.
- [FACT] Oath is made before the Governor or a person appointed by the Governor.
- [FACT] Age disputes are determined through the constitutional mechanism under Article 217.
- [ANALYSIS] Retirement-age difference can encourage post-High-Court elevation competition and recurrent reform proposals.

07. Removal and independence safeguards

Visual 9 - Removal route

proved misbehaviour or incapacity
|
Parliamentary investigation/process
|
special-majority address by each House
|
President removes

- [FACT] High Court judges use the same stringent constitutional removal standard applicable to Supreme Court judges through Article 217 read with Article 124(4).
- [FACT] Removal is not by the Governor, Chief Minister or High Court Chief Justice.
- [FACT] Salaries and service conditions are constitutionally protected, subject to constitutionally permitted changes.
- [FACT] Administrative expenses of a High Court are charged on the Consolidated Fund of the State.
- [ANALYSIS] Security of tenure protects decisional independence; accountability remains possible through removal and judicial ethics mechanisms.

Visual 10 - Independence safeguards

Safeguard	Purpose
Difficult removal	protects against political retaliation
Protected service conditions	reduces financial pressure
Judicial primacy in appointments	limits executive domination
Article 222 consultation	controls transfer power
Article 235 control	shields district judges from State executive
Article 226/227 basic-structure review	preserves constitutional function

08. Transfer of judges

Visual 11 - Article 222

Need/public-interest consideration
|
CJI-led collegium consultation
|
President transfers judge
|
compensatory allowance as provided

- [FACT] Article 222 permits presidential transfer after consultation with the CJI.
- [FACT] A judge's consent is not a constitutional prerequisite.
- [ANALYSIS] Transfer can address administration and local entrenchment but can also be perceived as punitive.
- [LIMIT] The legitimate standard is public interest through institutional consultation, not executive punishment.
- [FACT] *Sankalchand Sheth* and the Judges Cases form part of the transfer-and-consultation doctrinal history.

09. Acting, additional and retired judges

Visual 12 - Temporary capacity tools

Article	Mechanism	Trigger
223	Acting Chief Justice	vacancy or absence/inability
224	Additional judge	temporary increase in business or arrears
224	Acting judge	permanent judge absent/unable

Article	Mechanism	Trigger
224A	Retired judge sits and acts	request by CJ with President's prior consent

- [FACT] Additional and acting judges are constitutional capacity devices, not substitutes for regular appointments.
- [FACT] A retired judge under Article 224A is not thereby treated as a permanent serving judge for all purposes.
- [ANALYSIS] Stop-gap appointments can reduce immediate pressure but do not cure systemic vacancy pipelines.

10. Court of record and contempt

Visual 13 - Article 215

HIGH COURT AS COURT OF RECORD

- +++ records have evidentiary authority
- +++ decisions form binding precedent within hierarchy
- +++ power to punish for contempt of itself

- [FACT] Article 215 declares every High Court a court of record and gives contempt power.
- [ANALYSIS] Contempt protects administration of justice, not judicial immunity from fair criticism.
- [LIMIT] Contempt power is governed by constitutional principles and statute; it is not unlimited personal protection for judges.

11. Jurisdiction master map

Visual 14 - High Court jurisdiction

Jurisdiction	Core content
Original	writs, contempt, election matters and specified civil/admiralty fields
Writ	Article 226 rights and other legal purposes
Appellate	civil and criminal appeals
Supervisory	Article 227 over courts and tribunals
Constitutional withdrawal	Article 228
Judicial review	invalidates unconstitutional law/action
Administrative control	Article 235 over subordinate judiciary

- [LIMIT] Original civil jurisdiction is not uniform across all High Courts.
- [FACT] The older chartered High Courts and Delhi possess specified original civil jurisdiction under applicable law.

12. Article 226: the citizen's wide constitutional remedy

Visual 15 - Scope comparison

Article 32

- Fundamental Rights only
- remedy itself is a Fundamental Right
- Supreme Court / all-India reach

Article 226

- Fundamental Rights + any other legal purpose
- constitutional power, not itself a FR
- territorial/cause-of-action limits

- [FACT] Article 226 is wider than Article 32 in **purpose**.
- [FACT] Article 32 has wider national territorial reach and is itself a Fundamental Right.
- [FACT] Article 226(2) permits action where the cause of action arises wholly or partly within the High Court's territory even if the authority is located elsewhere.
- [FACT] The cause-of-action extension came through the Fifteenth Amendment.

- [LIMIT] "Article 226 is wider" does not mean unlimited territorial jurisdiction.

13. The five writs

Visual 16 - Writ decision table

Writ	Question answered	Typical target
Habeas corpus	Is detention lawful?	public or private detainer
Mandamus	Is a public/legal duty being refused?	public authority
Prohibition	Is a lower forum exceeding jurisdiction before completion?	court/tribunal
Certiorari	Has a jurisdictionally defective order been made?	court/tribunal/authority
Quo warranto	By what authority is public office held?	public office-holder

- [FACT] Article 226 authorises writs as well as directions and orders.
- [LIMIT] Mandamus ordinarily does not compel a purely private person or discretionary act without legal duty.
- [FACT] Habeas corpus may operate against private detention.
- [FACT] Prohibition prevents; certiorari quashes.
- [FACT] Quo warranto focuses on lawful title to public office and can relax ordinary standing rules.

Visual 17 - Memory line

BODY detained?	HABEAS CORPUS
DUTY refused?	MANDAMUS
PROCEEDING ongoing?	PROHIBITION
ORDER completed?	CERTIORARI
OFFICE usurped?	QUO WARRANTO

14. Alternative-remedy rule

Visual 18 - Writ discretion

```

Statutory remedy exists?
|
+-- ordinarily use appeal/revision first
|
+-- but HC may intervene for:
    Fundamental Rights
    natural-justice failure
    lack of jurisdiction
    constitutional challenge

```

- [FACT] The alternative-remedy rule is a rule of judicial discretion and self-restraint, not an absolute jurisdictional bar.
- [ANALYSIS] It protects statutory forums while preserving rapid constitutional relief for serious illegality.
- [LIMIT] Article 226 should not become a routine substitute for every trial or appeal.

15. Judicial review as Basic Structure

Visual 19 - L. Chandra Kumar control

```

Tribunal decides
|
High Court Division Bench review under Articles 226/227
|
Supreme Court where available

```

- [FACT] *L. Chandra Kumar v. Union of India* (1997) held judicial review under Articles 226/227 and 32 to be part of the Basic Structure.
- [FACT] Tribunal decisions remain subject to High Court scrutiny.
- [LIMIT] The judgment did not abolish tribunals; it denied them complete substitution for constitutional courts.

- [ANALYSIS] The High Court is the constitutional quality-control layer for decentralised adjudication.

16. Article 227 superintendence

Visual 20 - Supervision, not appeal

Feature	Article 227
Reach	courts and tribunals within territory
Exclusion	Armed-Forces-law forums
Initiation	petition or suo motu
Nature	judicial and administrative superintendence
Restraint	not routine factual reappraisal

- [FACT] Article 227 keeps subordinate forums within jurisdiction and ensures regular administration.
- [ANALYSIS] If used as a second appeal, superintendence would collapse the statutory hierarchy.
- [LIMIT] Corrective intensity depends on jurisdictional error, grave injustice and procedural failure, not simple disagreement.

17. Article 228 constitutional withdrawal

Visual 21 - Withdrawal route

```

Subordinate-court case
|
substantial constitutional-interpretation question
|
High Court withdraws
|
decides question or whole case
|
may return case with binding answer

```

- [FACT] Article 228 is narrower than general appellate jurisdiction.
- [ANALYSIS] It centralises authoritative constitutional interpretation in the High Court while allowing ordinary factual adjudication to return below.

18. Appellate and original jurisdiction

- [FACT] High Courts hear civil and criminal appeals under constitutional, procedural and special statutory frameworks.
- [FACT] A Sessions Court death sentence requires High Court confirmation before execution.
- [FACT] High Courts hear election petitions concerning Parliament and State legislatures under the Representation of the People Act.
- [FACT] Specified High Courts possess original civil, admiralty or testamentary jurisdiction under applicable law.
- [LIMIT] Jurisdiction varies by statute, pecuniary threshold and local arrangement; avoid claiming identical original jurisdiction for every High Court.

Visual 22 - Criminal control

```

Trial court conviction/sentence
|
statutory appeal/revision
|
High Court
|
death sentence requires confirmation

```

19. High Court benches and access

- [FACT] A High Court may have its principal seat and permanent or circuit benches under applicable reorganisation/statutory arrangements.
- [ANALYSIS] Benches can reduce travel and regional exclusion but may fragment administration and generate seat-location politics.
- [LIMIT] Bench creation is not a unilateral power of the High Court alone; constitutional, executive and statutory processes apply.

20. Subordinate judiciary: constitutional architecture

Visual 23 - Articles 233-237

Article	Subject
233	appointment, posting and promotion of district judges
233A	validation of specified past appointments/judgments
234	recruitment below district judge
235	High Court control
236	interpretation, including broad "district judge" definition
237	application to certain magistrates

Visual 24 - Independence chain

Governor appoints district judges
+
mandatory High Court consultation
|
High Court controls posting, promotion and leave
|
district judiciary insulated from ordinary executive command

21. Appointment of district judges

- [FACT] Article 233 places appointment, posting and promotion of district judges with the Governor in consultation with the High Court.
- [FACT] A person not already in Union/State service requires at least seven years as advocate or pleader and High Court recommendation for district-judge appointment.
- [LIMIT] The Governor does not appoint unilaterally, and the High Court does not formally appoint alone.
- [ANALYSIS] Consultation protects judicial independence while retaining constitutional State appointment form.

22. Recruitment below district judge

Visual 25 - Article 234

Governor makes appointment
|
rules framed after consultation with:
+-- State Public Service Commission
+-- High Court

- [FACT] Article 234 governs persons other than district judges entering the State judicial service.
- [ANALYSIS] The tripartite design combines recruitment machinery, constitutional appointment and judicial quality control.
- [LIMIT] Exact examinations, cadres and service rules vary by State.

23. Article 235 control

Visual 26 - What "control" protects

HIGH COURT CONTROL
+-- posting
+-- promotion
+-- leave
+-- disciplinary supervision within law
|
v
lower-court decisional independence

- [FACT] Article 235 vests control over district courts and subordinate courts in the High Court.
- [ANALYSIS] Independence would be hollow if the executive could transfer or discipline trial judges whose decisions affect the State.
- [LIMIT] Service conditions and appeal rights remain subject to law; High Court control is constitutional administration, not arbitrary power.

24. District-court hierarchy

Visual 27 - Civil and criminal sides

Level	Civil side	Criminal side
District apex	District Judge	Sessions Judge
Middle	Civil Judge, Senior Division	Chief Judicial Magistrate
Entry/lower	Civil Judge, Junior Division / Munsiff	Judicial Magistrate

- [FACT] District Judge and Sessions Judge describe the same judicial officer acting on civil and criminal sides.
- [FACT] Article 236 defines "district judge" broadly to include multiple equivalent designations.
- [LIMIT] Court names and exact pecuniary/criminal jurisdiction vary under State law and current procedural statutes.

25. Administrative and judicial responsibilities

Visual 28 - High Court as head of State judiciary

Constitutional adjudication
+
appeals and revisions
+
Article 227 supervision
+
Article 235 administration
=
rights court + system manager

- [ANALYSIS] High Court overload is multidimensional: constitutional cases, ordinary appeals and administrative control compete for judicial time.
- [ANALYSIS] Reform must therefore combine judge strength, registry modernisation, lower-court capacity and case-flow management.

26. Legal aid under Article 39A

Visual 29 - Access ladder

NALSA
|
State Legal Services Authorities
|
District Legal Services Authorities
|
Taluk Legal Services Committees
|
legal aid / Lok Adalats / awareness

- [FACT] Article 39A directs equal justice and free legal aid.
- [FACT] The Legal Services Authorities Act, 1987 creates the institutional framework.
- [FACT] NALSA, SLSAs, DLSAs and Taluk committees support eligible persons and organise Lok Adalats.
- [ANALYSIS] Formal judicial independence does not equal access if cost, distance, language and legal representation exclude citizens.

27. Lok Adalats and Permanent Lok Adalats

Visual 30 - Core distinction

Feature	Lok Adalat	Permanent Lok Adalat
Main model	compromise/settlement	pre-litigation public-utility dispute mechanism
Consent	settlement ordinarily rests on compromise	may decide merits after conciliation fails within statutory field
Criminal scope	compoundable offences only	statutory public-utility scope; not general criminal trial
Award	final and binding; decree-like	final and binding within statute

- [FACT] Ordinary Lok Adalats do not adjudicate a contested dispute on merits when settlement fails.
- [FACT] Non-compoundable criminal offences cannot be settled through Lok Adalat.
- [LIMIT] Lok Adalats reduce suitable disputes; they are not substitutes for constitutional courts or ordinary criminal justice.

28. Lok Adalat versus arbitration

Visual 31 - 2024 PYQ matrix

Axis	Lok Adalat	Arbitration tribunal
Source	Legal Services Authorities Act	Arbitration agreement and Arbitration Act
Nature	conciliation/settlement forum	private adjudication
Basis	statutory legal-aid/access mechanism	party consent to arbitrate
Criminal matters	compoundable criminal settlement possible	criminal prosecution not arbitrable
Result	settlement award, decree-like	arbitral award, challenge under statute

- [LIMIT] A Permanent Lok Adalat's statutory merits power must not be confused with an ordinary Lok Adalat.

29. Family Courts and Gram Nyayalayas

Visual 32 - Special access forums

Institution	Core purpose	Key caution
Family Court	conciliation-focused family disputes	not a general village criminal court
Gram Nyayalaya	mobile/local access for specified civil and criminal matters	implementation is uneven
Lok Adalat	consensual settlement	no non-compoundable offences

- [ANALYSIS] Decentralised forums address distance and procedure, but underfunding and weak notification can limit actual reach.

30. All India Judicial Service

Visual 33 - Constitutional route

Rajya Sabha resolution under Article 312
by at least two-thirds present and voting
|
Parliament creates service by law
|
AIJS may include district-judge level
|
cannot include posts below district judge: Article 312(3)

Visual 34 - AIJS debate

Case for	Case against
common merit standards	State language and local-law needs
coordinated recruitment calendar	federal recruitment autonomy
wider talent pool and diversity	possible weakening of Articles 233-235
vacancy reduction	central exam alone cannot fix retention/infrastructure
national training standards	High Court control must remain meaningful

- [CURRENT] No AIJS is operational as of 18 August 2026.
- [LIMIT] AIJS cannot constitutionally recruit posts below district judge.
- [ANALYSIS] A workable model must preserve Article 235 control, State language competence, reservations, local law training and High Court participation.

31. Vacancy and pendency problem

Visual 35 - Capacity spiral

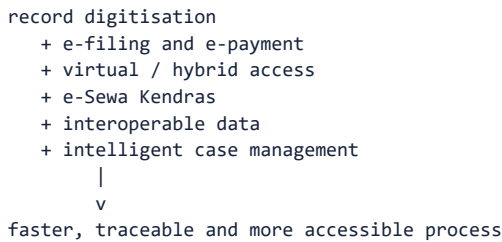
vacancies + weak staff/infrastructure
|
v
adjournment and backlog
|
v
slower enforcement and appeals
|
v
lower trust / higher litigation cost
|
v
more pressure for exceptional forums

- [CURRENT] Official vacancy and pendency dashboards show persistent capacity gaps, but counts change continuously.

- [ANALYSIS] Pendency is produced by incoming case volume, vacancies, procedural complexity, government litigation, adjournments, weak service of process and uneven technology.
- [LIMIT] No single reform - AIJS, more judges, tribunals or mediation - can solve all components.

32. eCourts Phase III

Visual 36 - Digital justice stack



- [CURRENT] Phase III covers 2023-2027 with an official outlay of Rs 7,210 crore.
- [CURRENT] Its objectives include digitised records, paperless courts, universal digital filing/payment capacity and data-enabled management.
- [ANALYSIS] Technology can reduce filing friction, missing records and travel costs.
- [LIMIT] Digital exclusion, cyber security, privacy, poor connectivity, language barriers and algorithmic opacity require safeguards.

33. National Judicial Data Grid and data governance

- [FACT] Digital court systems aggregate case-status and pendency information for administration and public access.
- [ANALYSIS] Better data can identify age-wise backlog, bottlenecks and judge-court workload.
- [LIMIT] Administrative indicators must not become crude performance quotas that pressure adjudicative independence or reward hurried disposal.

34. Government litigation and case management

Visual 37 - Reform sequence

Problem	Targeted response
repetitive government appeals	accountable litigation policy
summons/service delay	reliable digital and physical service
adjournment culture	reasoned limits and realistic calendars
old cases	age-based docket management
vacancies	predictable recommendation/recruitment pipeline
weak staff	registry and process-server capacity
access barriers	legal aid, e-Sewa Kendras and local language

35. Judicial independence and accountability

Visual 38 - Balance

INDEPENDENCE

tenure, appointments, transfer safeguards,
Article 235 control, review power

ACCOUNTABILITY

reasoned judgments, appeal/review,
ethics, transparent administration,
removal for proved misconduct

CAPACITY

judges, staff, buildings, technology,
legal aid and case management

- [ANALYSIS] Independence without accountability risks opacity; accountability without independence risks political control; both without capacity produce delayed justice.
- [LIMIT] Pendency alone does not prove judicial misconduct, and speed alone is not justice.

36. Articles 214-237 rapid map

Article	Recall
214	High Court for each State
215	court of record and contempt
216	constitution of High Court
217	appointment and conditions
218	specified SC provisions applied
219	oath
220	post-retirement practice restriction
221	salaries
222	transfer
223	acting Chief Justice
224	additional and acting judges
224A	retired judges sitting
225	existing jurisdiction
226	writ jurisdiction
227	superintendence
228	constitutional case withdrawal
229	officers, servants and expenses
230	extension/exclusion of jurisdiction over UTs
231	common High Court
233	district judges
233A	validation provision
234	recruitment below district judge
235	High Court control
236	interpretation
237	application to magistrates

PART II - Optional Advanced refinements

37. Article 226 versus Article 227 in answer writing

Question	Article 226	Article 227
Primary function	public-law remedy	systemic supervision
Typical trigger	petition alleging legal/right violation	jurisdictional or grave supervisory defect
Writ language	expressly named writs/orders/directions	superintendence
Suo motu	ordinarily petition-based	can be suo motu
Remedy style	direct constitutional relief	correction/control of subordinate forum

38. High Court versus Supreme Court

Dimension	High Court	Supreme Court
Constitutional remedy	Article 226	Article 32
Purpose	FRs and other legal rights	FRs under Article 32
Retirement	62	65
Original civil work	selected HCs	federal/original constitutional fields
Supervision of district courts	Articles 227/235	no equivalent daily State administration
Court count	25 institutions	one Supreme Court

39. Appointment reform matrix

Reform	Benefit	Risk/qualification
published selection criteria	transparency	privacy and reputational fairness
appointment calendar	vacancy reduction	cannot override constitutional consultation
diverse candidate pool	representation and legitimacy	merit must be substantively defined
reasoned reconsideration	accountable executive-collegium dialogue	sensitive material may require confidentiality
permanent secretariat	institutional memory	design must preserve judicial independence

40. Answer-writing evidence discipline

Visual 39 - Evidence chain

CLAIM

- > ARTICLE / CASE / OFFICIAL PROGRAMME
- > MECHANISM
- > ANALYSIS
- > QUALIFICATION
- > DIRECTIVE-SPECIFIC VERDICT

Example

- Claim: High Court control protects district judicial independence.
- Named evidence: Articles 233-235.
- Mechanism: consultation for appointments and High Court control over posting/promotion/leave.
- Analysis: removes direct State-executive leverage.
- Qualification: recruitment and infrastructure remain shared responsibilities.
- Verdict: independence requires High Court control plus coordinated capacity.

PYQ, practice and solved workbook

Verified/cross-owned Mains PYQs

PYQ 1 - UPSC GS-II 2024, Q2 - access-to-justice application

Verified neutral demand: Explain and distinguish Lok Adalats and Arbitration Tribunals, including whether they entertain civil and criminal matters. **10 marks | 150 words | Primary detailed owner: Lok Adalats/Administrative Tribunals; application here: subordinate justice**

Model answer

Claim: [FACT] Lok Adalat is a statutory settlement institution serving access to justice; arbitration is consensual private adjudication of arbitrable civil disputes.

Named evidence: The Legal Services Authorities Act, 1987 authorises Lok Adalats. They facilitate compromise, and an agreed award is final, binding and decree-like. Ordinary Lok Adalats cannot decide a contested case on merits if settlement fails. They may settle civil disputes and compoundable criminal offences, never non-compoundable offences.

Arbitration arises from an arbitration agreement under the Arbitration and Conciliation Act. The tribunal hears evidence and renders an arbitral award subject to limited statutory challenge. It handles arbitrable civil/commercial disputes, not criminal prosecution.

Qualification: Permanent Lok Adalats for public-utility services have a distinct statutory conciliation-cum-adjudication role after failed settlement; they should not be equated with ordinary Lok Adalats.

Verdict: Both reduce ordinary-court burden, but Lok Adalat is access-oriented consensual justice, while arbitration is party-chosen adjudication.

Evidence chain: Article 39A -> Legal Services Authorities Act -> compromise/compoundable limit -> arbitration agreement -> civil-commercial field.

PYQ 2 - UPSC GS-II 2025, Q13 - appointments application

Verified neutral demand: Critically examine the collegium system of judicial appointments in India with comparison to the United States. **15 marks | 250 words | Primary owner: Polity 18; application here: High Court appointments**

Model answer

Claim: [FACT] India's collegium prioritises judicial independence through judicial primacy, while the United States uses presidential nomination and Senate confirmation, making political accountability more explicit.

Indian mechanism: Article 217 text provides presidential appointment after consultation with the CJI, Governor and High Court Chief Justice. The Judges Cases transformed consultation into collegium primacy. For High Court appointments, the originating Chief Justice consults two senior colleagues and the Supreme Court collegium of the CJI plus two senior-most judges considers the proposal. The NJAC was struck down in 2015.

Strengths: insulation from direct executive control, professional evaluation and protection of Basic Structure independence.

Weaknesses: opacity, limited published criteria, delays, uneven diversity and diffused responsibility.

US comparison: open nomination/confirmation increases public scrutiny but also permits ideological polarisation and partisan delay.

Reform: publish objective criteria and timelines, create a appointments secretariat, disclose reasoned outcomes consistent with privacy, broaden the candidate pool and make executive objections timely.

Verdict: India should reform, not politically capture, the collegium. Independence requires judicial primacy; legitimacy requires transparent, timely and diverse selection.

Evidence chain: Article 217 -> Judges Cases -> HC and SC collegium stages -> NJAC case -> US nomination-confirmation -> targeted reform.

Routed Prelims demands - provenance without invented answer letters

Prelims route 1 - 2019 GS-I Q81 - cross-owned

Verified neutral demand: High Court jurisdiction and Supreme Court review powers.

Doctrinal solution

- [FACT] Article 226 covers Fundamental Rights and other legal purposes.
- [FACT] Article 32 directly enforces Fundamental Rights.
- [FACT] Supreme Court appellate/review authority does not erase High Court constitutional jurisdiction.
- [FACT] *L. Chandra Kumar* protects Articles 226/227 review as Basic Structure.

Elimination rule: Reject any proposition that tribunalisation or Supreme Court appellate authority wholly excludes High Court review.

Prelims route 2 - 2021 GS-I Q88 - cross-owned

Verified neutral demand: Retired Supreme Court judges and High Court powers.

Doctrinal solution

- [FACT] Article 224A concerns retired High Court judges requested to sit in a High Court.
- [FACT] Article 128 separately concerns retired Supreme Court judges sitting in the Supreme Court.
- [FACT] A High Court's Article 226/227 powers remain institutionally distinct.

Elimination rule: Do not transfer Article 128 arrangements to Article 224A or treat a recalled retiree as a permanent judge.

Original MCQ loop - strict A -> B -> C -> D rotation

OM1. Number of High Courts

India currently has:

A. 25 High Courts, some common to multiple States/UTs. B. one High Court for every State and UT. C. 28 High Courts. D. one High Court for each judicial district.

Answer: A.

Explanation: [CURRENT] Article 231 permits common High Courts.

OM2. Court of record

Which Article makes every High Court a court of record?

A. 214. B. 215. C. 216. D. 226.

Answer: B.

Explanation: [FACT] Article 215 includes contempt power.

OM3. Appointment

High Court judges are formally appointed by:

A. Governor. B. CJI. C. President. D. Chief Minister.

Answer: C.

Explanation: [FACT] Article 217 provides presidential appointment.

OM4. Qualification

Which is not a High Court qualification route?

A. Ten years in judicial office. B. Ten years as High Court advocate. C. Indian citizenship. D. Distinguished jurist.

Answer: D.

Explanation: [FACT] The distinguished-jurist route belongs to Supreme Court eligibility.

OM5. Retirement

A High Court judge ordinarily retires at:

A. 62. B. 60. C. 65. D. 68.

Answer: A.

Explanation: [FACT] Supreme Court retirement is 65.

OM6. Oath

High Court judge oath is before:

A. President only. B. Governor or authorised person. C. CJI. D. State Speaker.

Answer: B.

Explanation: [FACT] Article 219 controls.

OM7. Transfer

Article 222 transfer is made by:

A. Governor without consultation. B. Parliament. C. President after consultation with CJI. D. Supreme Court registry.

Answer: C.

Explanation: [FACT] Collegium doctrine structures the consultation.

OM8. Acting Chief Justice

The relevant provision is:

A. Article 224A. B. Article 225. C. Article 231. D. Article 223.

Answer: D.

Explanation: [FACT] Article 223 covers Acting Chief Justice.

OM9. Writ scope

Article 226 permits writs for:

A. Fundamental Rights and other legal purposes. B. Fundamental Rights only. C. criminal appeals only. D. Union disputes only.

Answer: A.

Explanation: [FACT] This makes Article 226 wider in purpose than Article 32.

OM10. Territorial cause of action

Article 226 jurisdiction may arise where:

A. respondent is anywhere regardless of dispute. B. cause of action arises wholly or partly within territory. C. petitioner is an Indian citizen only. D. Supreme Court grants permission.

Answer: B.

Explanation: [FACT] Article 226(2) controls.

OM11. Detention

The writ testing unlawful detention is:

A. mandamus. B. quo warranto. C. habeas corpus. D. certiorari.

Answer: C.

Explanation: [FACT] It may run against public or private detention.

OM12. Public office

The writ challenging unlawful occupation of public office is:

A. prohibition. B. habeas corpus. C. mandamus. D. quo warranto.

Answer: D.

Explanation: [FACT] It tests authority to hold public office.

OM13. Mandamus

Mandamus ordinarily:

A. commands performance of a public/legal duty. B. quashes a completed order. C. stops illegal detention. D. transfers a judge.

Answer: A.

Explanation: [FACT] A legal duty must exist.

OM14. Prohibition

Prohibition generally:

A. awards compensation. B. stops a lower forum before completion for jurisdictional error. C. removes a public officer. D. reviews a completed conviction on merits.

Answer: B.

Explanation: [FACT] Certiorari ordinarily quashes after the order.

OM15. Certiorari

Certiorari commonly:

A. commands legislation. B. releases every prisoner. C. quashes a jurisdictionally defective completed order. D. appoints a tribunal.

Answer: C.

Explanation: [FACT] It is corrective rather than preventive.

OM16. Alternative remedy

The alternative-remedy rule is:

A. an absolute constitutional bar. B. applicable even to every jurisdictional nullity. C. a repeal of Article 226. D. a discretionary rule with recognised exceptions.

Answer: D.

Explanation: [FACT] Rights, natural justice and jurisdictional failures may justify direct writ relief.

OM17. Basic Structure

Which case protects High Court review of tribunals?

A. *L. Chandra Kumar*. B. *Kihoto Hollohan*. C. *S.R. Bommai*. D. *Kesavananda* alone.

Answer: A.

Explanation: [FACT] Articles 226/227 review cannot be excluded.

OM18. Superintendence

Article 227 concerns:

A. presidential election. B. High Court superintendence over territorial courts and tribunals. C. judicial appointments only. D. State finance.

Answer: B.

Explanation: [FACT] Armed-Forces-law forums are excluded.

OM19. Constitutional withdrawal

Article 228 permits withdrawal where a case involves:

A. any factual dispute. B. a minor procedural error. C. a substantial constitutional-interpretation question. D. a political disagreement.

Answer: C.

Explanation: [FACT] High Court may decide the question or whole case.

OM20. Common High Court

Common High Courts are authorised by:

A. Article 214 alone. B. Article 226. C. Article 235. D. Article 231.

Answer: D.

Explanation: [FACT] Article 231 accommodates multi-jurisdiction courts.

OM21. District judge appointment

District judges are appointed by:

A. Governor in consultation with High Court. B. High Court alone. C. State PSC alone. D. President.

Answer: A.

Explanation: [FACT] Article 233.

OM22. Lower judicial service

Article 234 requires consultation with:

A. Election Commission and CJI. B. State PSC and High Court. C. UPSC and Parliament. D. Finance Commission and Governor.

Answer: B.

Explanation: [FACT] Governor appoints under the consultation-based rules.

OM23. Control

Control over district and subordinate courts is vested in:

A. State Cabinet. B. Governor personally. C. High Court. D. Supreme Court registry.

Answer: C.

Explanation: [FACT] Article 235 protects independence.

OM24. District and Sessions Judge

Which is accurate?

A. They are always different offices. B. Sessions Judge is below Magistrate. C. District Judge handles only constitutional writs. D. The same officer is District Judge on civil side and Sessions Judge on criminal side.

Answer: D.

Explanation: [FACT] Functional designation changes with jurisdiction.

OM25. Death sentence

A Sessions Court death sentence:

A. requires High Court confirmation. B. becomes final immediately. C. requires Assembly approval. D. is confirmed by Governor alone.

Answer: A.

Explanation: [FACT] High Court confirmation is mandatory.

OM26. Legal aid

Article 39A concerns:

A. judicial transfer. B. equal justice and free legal aid. C. High Court retirement. D. contempt.

Answer: B.

Explanation: [FACT] The Legal Services Authorities Act implements the framework.

OM27. Ordinary Lok Adalat

If settlement fails, an ordinary Lok Adalat:

A. convicts the accused. B. imposes arbitration. C. does not adjudicate the contested merits. D. transfers the judge.

Answer: C.

Explanation: [FACT] Its core mode is consensual settlement.

OM28. Criminal scope

Lok Adalat may settle:

A. every criminal offence. B. no civil dispute. C. non-compoundable offences. D. compoundable criminal matters.

Answer: D.

Explanation: [FACT] Non-compoundable offences are excluded.

OM29. AIJS route

AIJS creation requires first:

A. Rajya Sabha resolution under Article 312. B. Governor conference only. C. Supreme Court ordinance. D. State PSC resolution.

Answer: A.

Explanation: [FACT] The resolution needs at least two-thirds present and voting.

OM30. AIJS floor

Article 312(3) means AIJS cannot include:

A. district judges. B. posts below district judge. C. judicial training. D. reserved categories.

Answer: B.

Explanation: [FACT] This is an express constitutional limit.

OM31. AIJS status

As of 18 August 2026:

A. UPSC recruits every civil judge. B. AIJS has replaced State services. C. no AIJS is operational. D. Article 235 is repealed.

Answer: C.

Explanation: [CURRENT] Recruitment remains under State constitutional structures.

OM32. eCourts Phase III

Its period and approved outlay are:

A. 2020-2025, Rs 1,000 crore. B. permanent, no approved scheme. C. 2026-2030, Rs 50,000 crore. D. 2023-2027, Rs 7,210 crore.

Answer: D.

Explanation: [CURRENT] Phase III focuses on digitised and paperless justice systems.

OM33. Digital justice

Which is a sound qualification?

A. e-filing cannot replace judges, staff and procedural fairness. B. technology automatically eliminates pendency. C. virtual hearings remove digital exclusion. D. case data should determine merits.

Answer: A.

Explanation: [ANALYSIS] Technology is an enabler, not adjudication itself.

OM34. Vacancy data

High Court vacancy numbers should be:

A. memorised permanently. B. cited from a dated official source. C. treated as constitutional text. D. inferred from case count.

Answer: B.

Explanation: [CURRENT/LIMIT] Working and sanctioned strength change.

OM35. NJAC

As of August 2026:

A. NJAC appoints High Court judges. B. Governors appoint through State commissions. C. collegium remains operative; NJAC is not in force. D. judges are elected.

Answer: C.

Explanation: [CURRENT] The 2015 decision invalidated the NJAC framework.

OM36. High Court role

The best description is:

A. only an appellate criminal court. B. only State executive adviser. C. tribunal without constitutional status. D. constitutional rights court, appellate court, supervisor and district-judiciary controller.

Answer: D.

Explanation: [ANALYSIS] Articles 215, 226-228 and 235 create the combined role.

Remedial MCQs - strict A -> B -> C -> D rotation

R1. Age trap

High Court retirement age:

A. 62. B. 65. C. 60. D. no retirement.

Answer: A.

Remedy: HC 62; SC 65.

R2. Oath trap

Oath is before:

A. President only. B. Governor or authorised person. C. Chief Minister. D. Lok Sabha Speaker.

Answer: B.

Remedy: Appointment by President, oath before Governor.

R3. Writ trap

Wider in purpose:

A. Article 32. B. Article 136. C. Article 226. D. Article 227.

Answer: C.

Remedy: Article 226 covers FRs plus other legal purposes.

R4. Prohibition-certiorari trap

The completed order is ordinarily quashed by:

A. mandamus. B. habeas corpus. C. prohibition. D. certiorari.

Answer: D.

Remedy: Prohibition prevents; certiorari corrects after order.

R5. Common-HC trap

The Constitution permits:

A. one High Court for multiple States/UTs. B. one High Court per district only. C. no UT jurisdiction. D. only 28 High Courts.

Answer: A.

Remedy: Article 231.

R6. District appointment trap

District judges:

A. are appointed by High Court alone. B. are appointed by Governor in consultation with High Court. C. are appointed by SPSC alone. D. are elected.

Answer: B.

Remedy: Article 233.

R7. Control trap

Posting and promotion control belongs to:

A. State Cabinet. B. Governor personally. C. High Court. D. Parliament.

Answer: C.

Remedy: Article 235.

R8. AIJS trap

AIJS:

A. already recruits all judges. B. includes every magistrate automatically. C. needs only an executive order. D. is not operational and cannot include posts below district judge.

Answer: D.

Remedy: Articles 312 and 312(3).

R9. Court-of-record trap

Article 215 includes:

A. contempt power. B. writ territorial extension. C. district appointment. D. AIJS.

Answer: A.

Remedy: Court of record and contempt.

R10. Article 227 trap

Article 227 is:

A. only an appeal. B. superintendence over courts/tribunals except Armed-Forces-law forums. C. a Fundamental Right. D. judicial removal.

Answer: B.

Remedy: Supervision is not routine factual reappraisal.

R11. Lok Adalat trap

Ordinary Lok Adalat may settle:

A. non-compoundable offences. B. every criminal prosecution. C. compoundable criminal and civil disputes by settlement. D. constitutional removal proceedings.

Answer: C.

Remedy: Consent and compoundability control.

R12. Technology trap

eCourts Phase III:

A. abolishes physical courts. B. decides cases algorithmically. C. replaces Article 226. D. digitises and improves process but does not replace adjudication.

Answer: D.

Remedy: Treat technology as capacity infrastructure.

Original solved Mains practice

M1. "Article 226 makes the High Court the everyday constitutional court." Analyse. (10 marks, 150 words)

Model answer

Claim: [FACT] Article 226 makes the High Court the locally accessible guardian of both Fundamental Rights and ordinary legal rights.

Named evidence: Unlike Article 32, it authorises writs for Fundamental Rights "and any other purpose." Article 226(2) connects jurisdiction to cause of action. *L. Chandra Kumar* protects Articles 226/227 review as Basic Structure and keeps tribunal decisions under High Court scrutiny.

Analysis: Citizens can challenge detention, jurisdictional error, public-duty failure and unlawful office without first converting every grievance into a Supreme Court case. Local access and broad purpose make the High Court the working constitutional court.

Qualification: [LIMIT] Relief is discretionary; adequate alternative remedies ordinarily matter, and territorial limits remain.

Verdict: Article 32 is the guaranteed national remedy for Fundamental Rights; Article 226 is the broader everyday rule-of-law jurisdiction.

M2. Compare Articles 32 and 226. (10 marks, 150 words)

Model answer

Claim: [FACT] Both enforce constitutional legality through writs, but they differ in nature, purpose, discretion and territorial reach.

Comparison: Article 32 is itself a Fundamental Right, lies in the Supreme Court and primarily enforces Fundamental Rights across India. Article 226 is a High Court power covering Fundamental Rights and other legal purposes, making it wider substantively. A High Court may apply the alternative-remedy rule, while Article 32 carries stronger remedial entitlement. Article 226 remains territorially linked, including cause-of-action jurisdiction.

Common control: *L. Chandra Kumar* places review under Articles 32 and 226/227 within Basic Structure.

Verdict: Article 32 guarantees the constitutional door; Article 226 places a wider door near the citizen. They are complementary, not hierarchical substitutes.

M3. Examine how Articles 227 and 235 secure the independence of the subordinate judiciary. (15 marks, 250 words)

Model answer

Claim: [FACT] Article 227 protects adjudicative legality through supervision, while Article 235 protects institutional independence through administrative control.

Mechanism: Article 227 gives High Courts judicial and administrative superintendence over territorial courts and tribunals, excluding Armed-Forces-law forums. It corrects grave jurisdictional and procedural failure without becoming a routine appeal. Article 235 vests posting, promotion, leave and disciplinary control over district and subordinate courts in the High Court.

Supporting design: Article 233 requires Governor-High Court consultation for district judges; Article 234 adds State PSC consultation for lower recruitment. Article 228 lets the High Court withdraw substantial constitutional-interpretation questions.

Analysis: Trial judges frequently decide cases involving State authorities. Executive control over their careers would threaten impartiality; High Court control separates administration from litigant government.

Qualification: Recruitment, finance and infrastructure remain shared with the State, while High Court control itself must follow law and natural justice.

Verdict: Articles 227 and 235 make the High Court the head, not merely the appellate apex, of an independent State judiciary.

M4. Critically examine the constitutional safeguards for High Court independence. (15 marks, 250 words)

Model answer

Claim: [FACT] High Court independence is secured through tenure, appointments, protected conditions, difficult removal, transfer consultation and un-excludable review.

Evidence: Article 217 provides presidential appointment with constitutional consultation and retirement at 62. Removal requires the Article 124(4)-type special-majority process. Article 221 protects conditions; Article 222 requires CJI consultation for transfer. Article 215 supplies court-of-record authority, while Articles 226/227 review is Basic Structure under *L. Chandra Kumar*. Article 235 protects control over lower courts.

Weaknesses: Collegium opacity, appointment delay, perceived punitive transfers, post-retirement incentives, vacancies and infrastructure gaps may weaken practical independence and public confidence.

Counterpoint: Full public disclosure may harm candidate privacy, and executive participation is legitimate in a constitutional appointment.

Reform: transparent criteria, appointment calendars, reasoned institutional dialogue, diversity, permanent secretariat and predictable infrastructure funding.

Verdict: The constitutional design is strong against direct control; delivery now depends on making appointments and administration timely, transparent and capacity-rich.

M5. Should India establish an All India Judicial Service? Discuss. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] AIJS can improve recruitment coordination and diversity, but only if it preserves the federal and High Court controls embedded in Articles 233-235.

Constitutional route: Article 312 requires a Rajya Sabha resolution supported by two-thirds present and voting, followed by parliamentary law. Article 312(3) excludes posts below district judge.

Case for: national talent pool, uniform standards, predictable recruitment, professional training, diversity and faster district-judge vacancies.

Case against: local language and State law are essential; centralisation may weaken High Court control and State reservation/service structures; a national examination cannot fix infrastructure, staff or retention.

Design safeguards: district-judge entry only, strong High Court role in selection/probation/control, State language testing, local-law training, federal consultation, reservation and transparent cadre allocation.

Current status: [CURRENT] No AIJS is operational as of 18 August 2026.

Verdict: AIJS is desirable as a cooperative recruitment framework, not a central takeover. Uniform entry must coexist with local competence and Article 235 control.

M6. Judicial pendency is a governance problem, not merely a judicial problem. Analyse. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] Pendency emerges from the entire justice chain: legislation, policing, prosecution, government litigation, judicial vacancies, procedure, infrastructure and citizen access.

Causes: delayed appointments, weak registries, repeated adjournments, service failures, frequent State appeals, complex statutes, forensic/prosecution gaps and uneven lower-court capacity.

Consequences: undertrial hardship, commercial uncertainty, weak rights enforcement, higher legal cost and pressure for tribunals or executive settlement.

Constitutional frame: Articles 226/227 and 235 give High Courts rights and system-management roles, but States fund infrastructure and participate in recruitment under Articles 233-234. Article 39A makes access a public obligation.

Reforms: fill posts through calendars, strengthen staff and service, use age-based docket management, responsible government litigation, mediation/legal aid, eCourts safeguards and process simplification.

Qualification: [LIMIT] Disposal targets must not reward hurried justice or compromise independence.

Verdict: Courts must manage cases, but governments must stop creating avoidable litigation and fund the institutions that constitutional remedies require.

M7. Evaluate eCourts Phase III as an access-to-justice reform. (20 marks, 250 words)

Model answer

Claim: [CURRENT] eCourts Phase III is a major justice-infrastructure programme, not a replacement for judges or adjudication.

Design: Approved for 2023-2027 with Rs 7,210 crore, it seeks record digitisation, e-filing, e-payment, paperless workflows, e-Sewa Kendras, interoperable data and intelligent case management.

Benefits: reduces travel and filing cost, improves record retrieval, supports hybrid hearings, tracks case age, enables transparent listing and aids administrators in finding bottlenecks. District litigants and lawyers may gain most where physical distance is large.

Risks: digital divide, inaccessible interfaces, language exclusion, cyberattacks, privacy leakage, poor scanning quality, unreliable connectivity and algorithmic scheduling without reasons.

Safeguards: assisted access through e-Sewa Kendras, open standards, local languages, cyber audits, data minimisation, human control over listing/merits, physical alternatives and user training.

Qualification: [LIMIT] Faster digital movement cannot cure vacancies, weak legal aid or poor investigation.

Verdict: Phase III can convert courts from paper-bound institutions into accessible public infrastructure only if digital-by-default never becomes digital-only.

M8. "High Courts combine constitutional adjudication with judicial administration." Evaluate the strengths and strains of this dual role. (20 marks, 250 words)

Model answer

Claim: [FACT] High Courts protect rights under Article 226 while supervising and administering the lower judiciary through Articles 227 and 235.

Strengths: The same constitutional court can identify systemic illegality, correct subordinate forums, ensure uniform precedent, control judicial careers and withdraw constitutional questions under Article 228. Integration protects district judges from the executive and connects administration to adjudicative standards.

Strains: Writ caseload, civil/criminal appeals, vacancies, registry management and disciplinary administration compete for time. Excessive Article 227 intervention may become a second appeal; weak administration can delay rights cases. Centralised High Court control may also overlook district-level management needs.

Reform: professional court administration, delegated registry authority with judicial oversight, data-based case flow without disposal quotas, regular inspections, district leadership training, timely appointments and separate administrative time.

Qualification: [LIMIT] Administrative professionalisation must not transfer decisional control to the executive or opaque technology vendors.

Verdict: The dual role is constitutionally valuable because it unifies rights and independence; it needs specialised management capacity so administration supports rather than consumes adjudication.

Final consolidated register notes

Integrated judicial chain

Supreme Court
|
High Courts: Articles 214-231
|
District and subordinate judiciary: Articles 233-237

- High Court = constitutional rights court + appellate court + supervisor + administrative controller.
- India has 25 High Courts; Article 231 permits common HCs.
- Articles 226/227 review is part of Basic Structure.

High Court judge quick facts

Item	Rule
Appointment	President under Article 217
Constitutional consultation	CJI, Governor, and HC CJ for puisne judge
Collegium stage	CJI + two senior-most SC judges
Qualification	citizen + 10 judicial years or 10 advocacy years
Distinguished jurist	not an HC route
Oath	Governor/authorised person, Article 219
Retirement	62
Transfer	President after CJI consultation, Article 222
Removal	same stringent standard as SC judge

Temporary judges

- Article 223: Acting Chief Justice.
- Article 224: additional and acting judges.
- Article 224A: retired High Court judge requested to sit, with President's prior consent.

Jurisdiction

Power	Anchor
Court of record/contempt	Article 215
Writs	Article 226
Superintendence	Article 227
Constitutional withdrawal	Article 228
District control	Article 235
Judicial review	Basic Structure; <i>L. Chandra Kumar</i>

Five writs

- Habeas corpus: test detention.
- Mandamus: command legal/public duty.
- Prohibition: stop jurisdictional excess before completion.
- Certiorari: quash completed jurisdictional error.
- Quo warrant: test title to public office.

Article 32 versus 226

Article 32	Article 226
Fundamental Right	constitutional power
FR enforcement	FRs plus other legal purposes
Supreme Court	High Court
all-India reach	territorial/cause-of-action reach
stronger remedial entitlement	discretionary, alternative-remedy discipline

Subordinate judiciary

- Article 233: district judges appointed by Governor in consultation with HC.
- Outside-service district-judge candidate: seven years as advocate/pleader plus HC recommendation.
- Article 234: lower judicial service through Governor's rules with SPSC and HC consultation.
- Article 235: HC control over posting, promotion, leave and discipline.
- District Judge = Sessions Judge on criminal side.
- Death sentence requires HC confirmation.

Access institutions

- Article 39A: equal justice and free legal aid.
- Legal Services Authorities Act, 1987: NALSA-SLSA-DLSA-Taluk framework.
- Ordinary Lok Adalat: consensual settlement; compoundable criminal matters only.
- Permanent Lok Adalat: distinct pre-litigation public-utility model with statutory merits power after conciliation failure.
- Arbitration: private consensual adjudication of arbitrable civil/commercial disputes.

Current reforms

- Collegium remains operative; NJAC not in force.
- AIJS is not operational.
- AIJS route: Article 312 Rajya Sabha resolution plus parliamentary law.
- Article 312(3): no posts below district judge.
- eCourts Phase III: 2023-2027, Rs 7,210 crore.
- Vacancy and pendency numbers must be cited from a dated official dashboard.

Answer-writing evidence bank

Claim	Named evidence	Qualification
HC is widest local rights court	Article 226	territorial and discretionary limits
review cannot be excluded	<i>L. Chandra Kumar</i>	tribunals still operate
lower judiciary independent	Articles 233-235	capacity is shared responsibility
transfer needs safeguards	Article 222 and collegium	consent not constitutionally required
AIJS may improve recruitment	Article 312	posts below district judge excluded
digital courts improve access	eCourts Phase III	digital cannot become digital-only
legal aid widens justice	Article 39A and 1987 Act	settlement forums cannot replace courts

Final verdicts

- **High Court:** the everyday constitutional court and head of the State judicial system.
- **Article 226:** wider in purpose than Article 32, but territorially and discretionarily disciplined.
- **Subordinate independence:** built through High Court consultation and Article 235 control.
- **AIJS:** possible only as cooperative reform preserving local language and High Court authority.
- **Digital justice:** public infrastructure that must remain assisted, secure and human-controlled.

Last-minute traps

1. 25 High Courts, not one per State/UT.
2. HC retirement 62; SC retirement 65.
3. President appoints; Governor administers oath.
4. No distinguished-jurist route for HC.
5. Article 226 wider in purpose; Article 32 wider nationally and itself a FR.
6. Prohibition prevents; certiorari quashes.
7. Article 227 supervision is not a routine appeal.
8. Article 228 requires a substantial constitutional-interpretation question.
9. District judge: Governor + HC consultation.
10. Article 234: SPSC + HC consultation.
11. Article 235 control belongs to HC.

12. AIJS is not operational and cannot include posts below district judge.
13. Ordinary Lok Adalat cannot decide contested merits after settlement fails.
14. eCourts does not replace judges, staff or due process.